Software as a Service Agreement

This Software as a Service Agreement (the "Agreement") is entered into as of March 2, 2026 (the "Effective Date") by and between **Arcadia Retail Inc.**, a corporation with its headquarters in the United States (the "Customer"), and **Bluepeak Analytics Inc**, a corporation (the "Supplier"). The Customer and the Supplier are each a "Party" and together the "Parties."

Recitals

WHEREAS, the Customer is a retailer that wishes to obtain access to the Supplier's hosted analytics software and related services;

WHEREAS, the Supplier has developed and operates such software and has the expertise, personnel and infrastructure to provide it as a hosted service; and

WHEREAS, the Parties wish to set out the terms on which the Supplier will provide, and the Customer will use and pay for, the Services.

NOW, THEREFORE, in consideration of the mutual covenants in this Agreement and other good and valuable consideration, the receipt and sufficiency of which are acknowledged, the Parties agree as follows:

Section 1. Definitions

"**Affiliate**" means any entity that controls, is controlled by, or is under common control with a Party.

"**Authorized Users**" means the Customer's and its Affiliates' employees, contractors and agents permitted to use the Services.

"**Customer Data**" means all data, content and information submitted to or processed by the Services by or on behalf of the Customer, including Personal Data.

"**DPA**" means the Data Processing Agreement between the Parties relating to the Services.

"**Initial Term**" has the meaning given in Section 2.

"**Personal Data**" means any information relating to an identified or identifiable natural person that is processed by the Supplier on behalf of the Customer.

"**Security Incident**" means any actual unauthorized access to, or acquisition, loss, disclosure or alteration of, Customer Data in the Supplier's possession or control.

"**Services**" means the hosted analytics software-as-a-service platform, support, maintenance and related services to be provided by the Supplier under this Agreement, as further described in Section 3.

Section 2. Term and Renewal

2.1 This Agreement commences on the Effective Date and, unless terminated earlier in accordance with its terms, continues until March 2, 2028, a period of twenty-four (24) months (the "Initial Term").

2.2 Following the Initial Term, this Agreement renews automatically for successive periods of twelve (12) months (each a "Renewal Term") unless a Party gives the other at least ninety (90) days' written notice of non-renewal before the end of the then-current Initial Term or Renewal Term. The Initial Term and all Renewal Terms are the "Term."

Section 3. Services

3.1 The Supplier shall provide the Services to the Customer and its Authorized Users during the Term in accordance with this Agreement and with reasonable skill, care and industry standards.

3.2 The Supplier grants the Customer a non-exclusive, non-transferable (except as permitted in Section 14) right during the Term to access and use the Services for the Customer's and its Affiliates' internal business purposes.

3.3 The Customer shall not (a) sublicense or resell the Services, (b) reverse engineer or attempt to derive source code from the Services except as permitted by law, or (c) use the Services in violation of applicable law. The Customer is responsible for the acts of its Authorized Users.

3.4 **Service Levels.** The Supplier shall ensure that the Services are available at least 99.5% of the time in each calendar month, excluding scheduled maintenance notified in advance. The Supplier shall notify the Customer of any Security Incident within seventy-two (72) hours of becoming aware of it. If the Supplier fails to meet the availability commitment, the Supplier shall promptly investigate, remedy the cause and provide a written root-cause report on request, without prejudice to the Customer's other rights and remedies.

Section 4. Fees and Payment

4.1 The Customer shall pay the Supplier annual fees of USD 540,000 (the "Annual Fees"). The total contract value for the Initial Term is USD 1,080,000.

4.2 The Supplier shall invoice the Customer for the Annual Fees in accordance with the invoicing schedule agreed by the Parties. Each invoice must be valid, correctly addressed and itemized.

4.3 The Customer shall pay each undisputed invoice within forty-five (45) days of receipt of a valid invoice.

4.4 If the Customer disputes any invoice in good faith, it shall notify the Supplier promptly, pay the undisputed portion, and the Parties shall work in good faith to resolve the dispute. Fees are exclusive of applicable sales and similar taxes, which shall be stated separately on the invoice.

Section 5. Confidentiality

5.1 “Confidential Information” means non-public information disclosed by one Party (the “Discloser”) to the other (the “Recipient”) that is marked confidential or would reasonably be understood to be confidential, including Customer Data and the terms of this Agreement.

5.2 The Recipient shall (a) use Confidential Information only to perform or exercise rights under this Agreement, (b) protect it with at least the same degree of care it uses for its own confidential information, and no less than reasonable care, and (c) disclose it only to personnel and advisors who need to know and are bound by equivalent obligations.

5.3 These obligations do not apply to information that is or becomes public without breach, was lawfully known to or independently developed by the Recipient, or was lawfully received from a third party. The Recipient may disclose Confidential Information to the extent required by law, after giving prompt notice where lawful.

5.4 The obligations in this Section survive for three (3) years after the end of this Agreement.

Section 6. Intellectual Property

6.1 The Supplier retains all right, title and interest in the Services and all related software, documentation and improvements. No rights are granted except as expressly stated.

6.2 The Customer retains all right, title and interest in the Customer Data. The Customer grants the Supplier a limited license to process Customer Data solely to provide the Services in accordance with this Agreement and the DPA.

Section 7. Data Protection and Security

7.1 The Parties acknowledge that the Services involve the processing of Personal Data of the Customer’s customers and employees. A DPA has been or will be executed alongside this Agreement, and the Supplier shall process Personal Data only in accordance with the DPA and applicable data protection law. In the event of conflict regarding Personal Data, the DPA prevails.

7.2 The Supplier shall maintain appropriate administrative, technical and physical safeguards designed to protect Customer Data against Security Incidents. In the event of a Security Incident, the Supplier shall notify the Customer as provided in Section 3.4, take prompt steps to contain and remediate it, and cooperate with the Customer’s reasonable requests and any legally required notifications.

Section 8. Warranties

8.1 Each Party warrants that it has full power and authority to enter into and perform this Agreement.

8.2 The Supplier warrants that for a period of sixty (60) days from the Effective Date (the “Warranty Period”), the Services will perform materially in accordance with their documentation. The Supplier’s obligation for breach of this warranty is to correct the non-conformity promptly or, if it cannot do so within a reasonable time, to permit the Customer to

terminate the affected Services and receive a refund of prepaid fees for the period after termination.

8.3 The Supplier further warrants that it will perform the Services in compliance with applicable law and that the Services will not knowingly contain malicious code.

8.4 EXCEPT AS EXPRESSLY STATED IN THIS AGREEMENT, NEITHER PARTY MAKES ANY OTHER WARRANTY, AND ALL IMPLIED WARRANTIES ARE DISCLAIMED TO THE FULLEST EXTENT PERMITTED BY LAW.

Section 9. Indemnification

9.1 The Supplier shall defend, indemnify and hold harmless the Customer and its Affiliates from and against third-party claims, and resulting losses, damages, costs and reasonable attorneys' fees, arising from (a) an allegation that the Services infringe or misappropriate any intellectual property right, or (b) the Supplier's breach of Section 5 or Section 7.

9.2 The Customer shall defend, indemnify and hold harmless the Supplier from third-party claims arising from the Customer's use of the Services in breach of this Agreement or the Customer's violation of law in providing Customer Data.

9.3 The indemnified Party shall give prompt notice of the claim, allow the indemnifying Party to control the defense and settlement (provided no settlement imposes liability on the indemnified Party without its consent), and provide reasonable cooperation.

Section 10. Limitation of Liability

10.1 SUBJECT TO SECTION 10.3, EACH PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT IS LIMITED TO TWO (2) TIMES THE FEES PAID OR PAYABLE IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

10.2 SUBJECT TO SECTION 10.3, NEITHER PARTY IS LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, OR LOSS OF PROFITS, EVEN IF ADVISED OF THEIR POSSIBILITY.

10.3 Nothing in this Agreement limits or excludes liability for fraud, gross negligence or willful misconduct, or any liability that cannot be limited under applicable law. The Customer's obligation to pay undisputed fees is not limited by this Section.

Section 11. Insurance

The Supplier shall maintain throughout the Term, with reputable insurers, insurance cover of at least USD 3,000,000 per claim, and shall provide evidence of such cover on reasonable request.

Section 12. Termination

12.1 **Termination for Convenience.** The Customer may terminate this Agreement without cause on thirty (30) days' written notice to the Supplier.

12.2 **Termination for Cause.** Either Party may terminate this Agreement by written notice if the other Party materially breaches it and fails to cure the breach within thirty (30) days after written notice of the breach, or if the other Party becomes insolvent or subject to bankruptcy or similar proceedings.

12.3 **Effect of Termination.** On expiry or termination, the Customer's right to use the Services ends, subject to this Section. The Supplier shall make Customer Data available for export for a reasonable period and thereafter delete it in accordance with the DPA. On termination by the Customer under Section 12.2 or Section 8.2, the Supplier shall refund prepaid fees for the period after termination. Accrued rights and Sections 1, 5, 6, 9, 10, 12.3, 13 and 14 survive.

Section 13. Governing Law and Dispute Resolution

13.1 This Agreement is governed by the laws of New York, without regard to its conflict-of-laws principles.

13.2 The Parties shall first attempt in good faith to resolve any dispute through escalation to senior executives. Failing resolution, the state and federal courts located in New York shall have exclusive jurisdiction, and each Party submits to their jurisdiction.

Section 14. Miscellaneous

14.1 **Assignment.** Neither Party may assign this Agreement without the other's prior written consent, not to be unreasonably withheld, except to a successor in a merger or sale of all or substantially all of its relevant business or assets on written notice.

14.2 **Notices.** Notices must be in writing and delivered by hand, nationally recognized courier or email with confirmation to the address a Party designates in writing, and are effective on receipt.

14.3 **Force Majeure.** Neither Party is liable for delay or failure caused by events beyond its reasonable control, excluding payment obligations, provided it uses reasonable efforts to mitigate and resume performance.

14.4 **Independent Contractors.** The Parties are independent contractors, and nothing in this Agreement creates a partnership, agency or employment relationship.

14.5 **Entire Agreement; Amendment.** This Agreement, together with the DPA, is the entire agreement between the Parties on its subject matter and supersedes all prior understandings. It may be amended only in a writing signed by both Parties.

14.6 **Severability; Waiver.** If any provision is held unenforceable, the remainder continues in effect. A failure to enforce a right is not a waiver of it.

14.7 **Counterparts.** This Agreement may be executed in counterparts, including by electronic signature, each of which is an original and all of which constitute one instrument.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives.

ARCADIA RETAIL INC.	**BLUEPEAK ANALYTICS INC**
By: _____	By: _____
Name: Michael Brennan	Name: Kenji Watanabe
Title: Chief Procurement Officer	Title: Authorised Signatory
Date: February 20, 2026	Date: February 23, 2026